

Subhash Chandra Maheshwari v. State of U.P.

Allahabad High Court · Division Bench · 4 April 2016 · Writ-C No. 13868 of 2016 · **Second writ on same recovery demand dismissed as not maintainable.**

HEADNOTE

A second writ petition challenging an 18 March 2016 recovery citation for Rs.6.05 crore—the same demand already pending in Writ-C No. 43973 of 2011—and also impugning clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005, is not maintainable. The later citation was only consequential to vacation of interim relief in the first petition. Liberty was granted to amend that pending writ. The petition was dismissed.

FACTUAL SUMMARY

The petitioner challenged an 18 March 2016 recovery citation for Rs.6,05,22,060 and sought a restraint on coercive steps, also impugning clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005. The same amount and period were already under challenge in pending Writ-C No. 43973 of 2011 against a 26 July 2011 citation. Recovery had been stayed in 2011; a Division Bench vacated that interim order on 8 March 2016, after which the fresh citation issued.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

maintainability of second writ on same recovery demand

HOLDING

A second writ petition challenging a recovery citation that is only consequential to vacation of interim relief in a pending writ on the same demand, and also impugning clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005, is not maintainable. The later citation and the Code challenge may be brought by amending the first writ petition. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF CLAUSE 4.3(F)(V) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Left to be raised by amendment in pending Writ-C No. 43973 of 2011. ¶ 1

NOT DECIDED — MERITS OF THE RS.6,05,22,060 RECOVERY DEMAND AND THE 18 MARCH 2016 CITATION

Second writ not entertained; challenge to be pursued in the first petition. ¶ 1